

PERFORMANCE WORK STATEMENT (PWS)

Version 1

October 2023

315 EN BN Portable Latrine and Handwashing Station, Del Rio, TX

13 April 2026

Part 1

General Information

1. **GENERAL:** This is a non-personal services contract under which the personnel rendering the services are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees. The United States (U.S.) Government shall not exercise any supervision or control over the Contractor's employees performing the tasks herein. Such contract employees shall be accountable solely to the Contractor who, in turn shall be responsible to the U.S. Government.

1.1. **Description of Services/Introduction:** The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide and maintain portable latrines and handwashing stations defined in this PWS except for those items specified as government furnished property (GFP) and government furnished services (GFS). The contractor shall perform to the standards in this contract.

1.2. **Background:** 315 EN BN requires portable latrines and handwashing stations in vicinity of (IVO) Del Rio, TX. Portable latrines and handwashing stations allow Soldiers the ability to have field sanitation in measures in place, as well as conduct their job requirements safer and more effectively.

1.3. **Objectives:** The Contractor shall provide and maintain portable latrines and handwashing stations.

1.4. **Scope:** The Contractor shall provide non-personal services to supply, place, service, and maintain portable latrines and portable handwashing stations in accordance with this PWS. The Contractor shall provide fourteen (14) portable latrines and seven (7) handwashing stations to the Del Rio, Texas Sector and ensure all units are fully operational, clean, and maintained.

1.5. **Period of Performance:** The period of performance shall consist of one (1) 12-month base year, three (3) 12-month option years, and one (1) 11.5-month option period, aligned with the conclusion of the WEXMAC MATOC period of performance, as follows:

<i>Base:</i>	<i>27 Apr 2026 to 26 April 2027</i>
<i>Option 1:</i>	<i>27 Apr 2026 to 26 April 2028</i>
<i>Option 2:</i>	<i>27 Apr 2026 to 26 April 2029</i>
<i>Option 3:</i>	<i>27 Apr 2026 to 26 April 2030</i>
<i>Option 4:</i>	<i>27 Apr 2026 to 26 April 2031</i>

1.6. **General Information:**

1.6.1. **Quality Control Plan (QCP):** The Contractor shall develop, implement, and maintain a QCP and program to ensure all work described in this contract is performed at or above the standard defined in the Performance Requirements Summary (PRS). The QCP is developed by the contractor for its internal use to ensure that it performs and delivers high-quality service. The contractor's QCP is the means by which the contractor ensures all work complies with the requirements of the contract. The QCP identifies and corrects potential and actual problem areas throughout the entire scope of the contract.

1.6.1.1. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The QCP shall be submitted within thirty (30) days of contract award. After acceptance of the QCP, the contractor shall receive the contracting officer's (KO) acceptance in writing of proposed changes to the QC procedures. The contractor shall submit QCP changes within five

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(5) days to the KO and Contracting Officer's Representative (COR) for review and approval prior to implementation.

1.6.1.2. The Quality Control Plan shall address as a minimum:

1.6.1.2.1. Inspection Program. Included shall be a quality control inspection program covering all general and specific tasks included in the contract scope of work. It shall specify tasks or areas to be inspected on a scheduled or unscheduled basis, the manner in which inspections are to be conducted, the titles of the individuals who will perform the inspections, and the percentage of the work that will be inspected on a recurring basis. In developing this inspection program, the Contractor shall identify the key activities and associated characteristics in each process that have a significant influence on specific services and provide for methods for evaluation of the selected characteristics.

1.6.1.2.2. Deficiency Identification. The QCP shall include a method of identifying deficiencies in the quality of services performed before the level of performance becomes unacceptable as defined in the PRS. This shall contain processes for corrective action without dependence upon Government direction.

1.6.1.2.3. Deficiency Correction. The program shall contain process control and process performance measurement procedures that shall include how the Contractor shall implement preventive corrective actions. The Contractor shall demonstrate that it has designed quality into the delivery of services thereby mitigating the risk(s) associated with delivery of deficient or nonconforming services.

1.6.1.2.4. Documentation and Enforcement. The QCP shall include a method of documenting and enforcing quality control operations of both prime contractor and subcontractor work; including inspection and testing.

1.6.1.2.5. Trend Analysis. The QCP shall include a method of performing trend analysis and assessments through the use of metrics.

1.6.1.2.6. Surveillance Methods. The QCP shall contain specific surveillance techniques for all contract services. The surveillance methods shall be comprehensive and adaptable to the reporting system of the plan.

1.6.2. Operations Security (OPSEC) SOP/Plan Requirements : The Contractor shall implement and maintain an OPSEC program for preventing the disclosure of critical information or sensitive information which could jeopardize the Government's ability to execute its mission or to adequately protect its personnel and/or equipment. The Contractor shall develop an OPSEC Standing Operating Procedure (SOP)/plan within 90 calendar days of contract award to the Contracting Officer Representative (COR) or to be reviewed and approved by the Government OPSEC Officer on the supporting installation. The SOP must contain a training plan that includes an initial OPSEC brief, continuous awareness, and annual OPSEC training. Awareness/training includes, but not limited to information disclosure via letters, conversations, photographs, resumes, electronic mail (e-mail), Social media/networking sites, dissemination of information and documents disposal. OPSEC Program shall fully comply with the provisions of AR 530-1, Operations Security.

1.6.2.1. Quality Assurance (QA): The government shall evaluate the contractor's performance under this contract in accordance with (IAW) the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed IAW the performance standards and contract quality requirements are met. Contract quality requirements" means the technical requirements in the contract relating to the quality of the product or service and those contract clauses prescribing inspection, and other quality controls incumbent on the contractor, to ensure the product or service conforms to the contractual requirements. It defines how the performance standards will be applied, the frequency of surveillance, the performance threshold, and deductions, if applicable.

1.6.3. Recognized Holidays: Contractor is not required to perform services on holidays.

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New Year's Day
Martin Luther King Jr.'s Birthday
President's Day
Memorial Day
Independence Day
Juneteenth Day

Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

1.6.4. Hours of Operation: The contractor is responsible for conducting business between the hours of 8:00 AM (0800) to 5:00 PM (1700) Sunday through Saturday, except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must, at all times, maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

1.6.5. Place of Performance: The work to be performed under this contract will be performed within Del Rio, Texas.

1.6.6. Type of Contract: The Government anticipates the award of a firm fixed price type award. This is a services type contract.

1.6.7. Access and General Protection Policy and Procedures: Reserved.

1.6.7.1. Access and general protection/security policy and procedures: Contractor personnel performing services under this contract shall comply with all installation, facility, and area access requirements applicable to the locations of performance. Contractor personnel shall carry valid government-issued photo identification at all times while performing services and shall present identification upon request by Government personnel to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.6.7.2. Physical Security: The contractor shall be responsible for safeguarding all government equipment, information, and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured IAW Army Regulation (AR) 190-13, "The Army Physical Security Program." Contractor personnel shall conduct themselves in a professional manner at all times. Contractor personnel shall not represent themselves as Government employees and shall comply with all posted rules, regulations, and instructions issued by Government authorities at the place of performance.

1.6.7.3. Escorts: The Contractor shall be responsible for safeguarding all contractor-owned equipment and materials used in the performance of this contract. The Government assumes no responsibility for loss, theft, or damage to contractor equipment resulting from contractor negligence.

1.6.7.4. Personnel Security Clearance Requirements:

1.6.7.4.1. The contractor shall follow DOD Federal Acquisition Regulation Supplement (DFARS) clause 252.223-7004, Drug-free Work Force; and local USSOUTHCOM policies regarding drug testing. The contractor shall conduct drug tests, ensuring all top secret cleared contractor employees are tested at least once per year, each year of the contract, as well as when there is a reasonable suspicion that an employee uses illegal drugs. The drug testing shall be at the contractor's expense. Positive drug test results shall be made available to both the KO and COR within 24 hours of known test results. Records of drug testing shall be made available to the COR.

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1.6.7.5. Background Checks: The Contractor shall ensure contractor employees and subcontractor employees performing services under this contract have passed a security check conducted by the Police Department of their residence or the State Police Department of their U.S. residence. Security checks that have been completed as part of a personnel security clearance background investigation, or a previous background check that was a condition of employment, meet this requirement. Documentation of these checks will be made available to the KO or COR within 10 days of request. The Government retains the right to exclude any employee from performance of duties under this contract if a background security check reveals an employee is a security risk. The exclusion of an employee for security reasons will not relieve the Contractor from performance of services required under this contract. If the Government determines additional background checks are required, at a minimum, and upon request from the Government, the Contractor shall provide to the KO or COR, the following information on any contractor or subcontractor employee performing services under this contract:

- Full birth name
- Married name (if applicable)
- SSN or local equivalent (ID card number)
- Date of birth
- Place of birth (city, country)

1.6.7.5.1. Background Check Notification Requirements: If a background check on any employee or subcontractor employee performing services under this contract, whether the check was conducted as a condition of employment or as part of the contract with the Government, reveals any information from any source (including host country law enforcement) of criminal activity by Contractor employees, subcontractors, or subcontractor employees, the Contractor shall notify the KO and COR of that information within 24 hours. The Contractor shall make notification of:

(1) Traffic violations, other than parking, will be reported to the KO or COR only if the contract is for drivers for the Government;

(2) Any suspicious activity by Contractor employees, subcontractors, or subcontractor employees the Contractor believes may pose a risk to U.S. or host nation national security or imminent risk of deadly bodily harm to any person; and

(3) Any actions taken against Contractor employees, subcontractors, or subcontractor employees pursuant to this requirement.

1.6.7.5.2. Remedies. In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of this paragraph may result in requiring the Contractor to remove a Contractor employee or employees from the performance of the contract.

1.6.7.5.3. Subcontracts. The Contractor shall include the substance of this paragraph and the preceding paragraph in all subcontracts.

1.6.7.6. Uncleared Contractor Common Access Card (CAC) Credentialing and Access Procedures: Reserved.

1.6.7.6.1. Contractor Common Access Card (CAC) Eligible Requirements: Reserved

1.6.7.6.1.1. Federal Installation/Facility Access: Reserved

1.6.7.6.2. Contractor Non CAC Eligible Requirements for DOD Facility and Installation: Reserved.

1.6.7.7. Employment Eligibility: The Contractor shall ensure that all Contractor employees and subcontractor employees performing services under this contract in the U.S. or its territories have been pre-screened for employment eligibility using the E-verify Program on the Department of Homeland Security website <http://www.uscis.gov/e-verify>. Personnel that have not met the employment eligibility requirement

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on this website are not authorized to perform services under this contract. Verification of the eligibility check will be made available to the KO or COR within five (5) days of request. This requirement is not in lieu of and does not relieve the Contractor from the I-9 Employment Eligibility Verification Forms for employment of personnel.

1.6.7.8. Access to Government Information Systems: All Contractor employees and subcontractor employees performing services under this contract who have access to a government information system must be registered in the ATCTS (Army Training Certification Tracking System) at commencement of services and must successfully completed the DoD Information Assurance Awareness training prior to access to the information system and then annually thereafter.

1.6.7.9. Key Control: Reserved.

1.6.7.9.1. Reserved.

1.6.7.9.2. Reserved.

1.6.7.10. Lock Combinations: Reserved.

1.6.8. Post Award Conference/Contract Periodic Progress Meetings: The Contractor shall attend the post award conference convened by the contracting activity or contract administration office IAW Federal Acquisition Regulation (FAR) Subpart 42.5. The KO, COR, with other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the KO will apprise the contractor of how the government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.6.9. Contracting Officer Representative (COR): The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: ensure the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the KO and Contractor of any deficiencies; coordinate availability of government furnished property; and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.6.10. Key Personnel: The following contractor personnel are considered key personnel by the government: contract manager. The Contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate, who shall act for the Contractor when the manager is absent, shall be designated in writing to the Contracting Officer within three (3) days. Contract Manager and alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The Contract Manager or alternate shall be available between The Contract Manager and alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract.

Qualifications for all key personnel are listed below:

Contract Manager and Alternate Contract Manager:

Minimum of 3–5 years of experience managing service contracts or similar operational programs. Demonstrated experience supervising personnel and coordinating daily contract activities. The Contract Manager and Alternate Contract Manager shall be able to read, speak, and write English at a minimum level xx proficiency IAW <https://www.govtillr.org/Skills/ILRscale2.htm>.

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Familiarity with basic contract administration practices and customer-service principles. Must be available during normal duty hours and reachable after hours as required.

Quality Control Manager:

Minimum of 3 years of experience in quality assurance, quality control, or inspection roles. Experience developing or implementing Quality Control Plans (QCPs). Ability to document deficiencies, track corrective actions, and interface with Government representatives. Strong attention to detail and organizational skills.

1.6.11 Special Qualifications or Certifications: Reserved.

1.6.11.1. IA/IT Training Certification: All Contractor employees and subcontractor employees supporting IA/IT functions must be certified upon contract award as directed in DoD 8570.01-M, DFARS 252.239.7001, and AR 25-2. Baseline certification as stipulated in DoD 8570.01-M must be completed upon contract award.

1.6.12. Identification of Contractor Employees: Contractor employees shall identify themselves as Contractor personnel and shall avoid representing themselves as Government employees. This identification includes meeting attendance, answering Government telephones, email communications, and working in other situations where Contractor status is not obvious. Contractor personnel identification shall be easily identifiable through the display of badges, name tags, lanyards, etc.

1.6.12.1. Badging of Contractor Employees: If required by the Government, contract personnel and all associated subcontractors employees accessing U.S. facilities or activities, shall present a valid picture ID provided by the Government while accessing Government owned or contracted facilities and shall adhere to facility security policies and restrictions. If applicable, Government issued access badges will not be worn outside designated facility where visible to the general public. Contractor personnel shall return all U.S. Government issued identification to appropriate U.S. Government authorities within 5 day of the end of their contractual duties.

1.6.12.2. Uniform: The Contractor shall provide a standard uniform for all Contractor and subcontractor employees performing services under this contract, and ensure they wear the uniform during appointed duty hours. The uniform may consist of the same type and color shirt and slacks for all workers. Company logo is optional.

1.6.13. Contractor Travel: Contractor shall be required to travel to the grid coordinated provided in part five (5) of the PWS during the performance of this contract to perform service and attend meetings. The Contractor may be required to travel to off-site training locations and to ship training aids to these locations in support of this PWS.

1.6.14. Other Direct Costs (ODC): Reserved.

1.6.15. Data Rights: Reserved.

1.6.16. Non-Disclosure Requirements: Performance under this contract may require the Contractor to access data and information proprietary to a Government agency, another Government Contractor, or of such nature that its dissemination or use other than as specified in this work statement would be adverse to the interests of the Government or others. Neither the Contractor, nor Contractor personnel, shall divulge, nor release data or information developed, or obtained under performance of this work statement, except to authorize Government personnel or upon written approval of the KO. The Contractor shall not use, disclose, or reproduce proprietary data, which bears a restrictive legend, other than as specified in this PWS. All documentation showing individual names or other personal information shall apply, and shall be controlled and protected under the provisions of the Privacy Act of 1974, Public Law 93-579, 5 United States Code (U.S.C.) Section 552a.

1.6.16.1. Non-Disclosure Statements: Reserved.

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1.6.16.2. Advertisement and Social Media: The Contractor shall NOT post information to public website or social media locations, personal or professional, that in any way disclose names, locations, hotel data, participants, discussions, pictures, etc. before, during or after the contract period of performance without the express consent of the Government. The use of propaganda violates DOD Commercial Use of Imagery Guidelines stated at (www.dimoc.mil/resourceess/limitations/). The Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any marketing tools to include its company website, tv/radio broadcasts, online forums and social media including content posted to accounts of family, friends or associates

1.6.16.3. INFORMATION ASSURANCE: At no time will the Contractor or associated sub-contractor employees transmit government documents or information over using methods that do not meet the security requirements specified in the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" such as personal electronic mail accounts, public digital data storage sites (cloud storage), social media platforms or instant messaging. Approved government sites such as U.S. Army Aviation and Missile Research Development and Engineering Center (ARMDEC) Safe Exchange at <https://safe.amrdec.army.mil/SAFE/About.aspx>, or All Partners Access Network (APAN) at <https://community.apan.org/>, or other transmission means determined by the government must be used.

1.6.17. Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to, or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5.

1.6.18. Phase-in/Phase-Out (PIPO) Period: Reserved.

1.6.19. General Training Requirements:

1.6.19.1. Anti-Terrorism (AT) Level I Training: The Contractor shall complete AT Level I Training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies, or 30 calendar days after employment of new personnel, all Contractor employees, including subcontractor employees, who are employed under the contract shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies. The contractor shall submit certificates of completion for each affected Contractor employee and subcontractor employee to the COR or KO within 10 calendar days after completion of training by all employees and subcontractor personnel. For Common Access Card (CAC) holders, AT Level I awareness training is available at <https://jkodirect.jten.mil>, course number "JS-US007-14". For non-CAC holders, AT Level I awareness training is available at <http://jko.jten.mil/courses/at11/launch.html> (this standalone version is intended for non-CAC users without a JKO account only). Training must have been completed within the last 12 months and maintained yearly thereafter. If training cannot be conducted on the website, the Contractor will coordinate with the local AT Officer at their assigned location for classroom training by a Level 2 trained AT Officer and a copy of either the training certificate or the training attendance roster signed by the AT Officer will be maintained by the Contractor. Verification of the training will be provided to the COR or KO within 10 calendar days after completion of the training.

1.6.19.2. OPSEC Awareness: If the Contractor, or a subcontractor, or employees of either disclose any information that disrupts or harms the Government's operations or activities, then the Government retains the right to exclude any employee from performance of duties under this contract. The exclusion of an employee for security reasons will not relieve the Contractor from performance of services required under this contract. By way of example, personnel shall not sketch or take photos of government facilities or activities, unless related to service to be provided. All government paper products and removable digital storage material that is received, generated, or stored during the contract will be destroyed completely when no longer needed to preclude recognition of information.

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1.6.19.3. Information Assurance (IA) Training: Contractor employees, including subcontractors, requiring access to Government information systems shall complete the DOD IA Cyber Awareness Training. All employees working information technology (IT)/IA functions must comply with DOD and Army training requirements per DOD Directive (DODD) 8570.01, Information Assurance Training Certification and Workforce Management, DOD 8570.01-M, Information Assurance Workforce Improvement Program, and AR 25-2, Information Assurance, within 30 days of employment. Training is available at <https://ia.signal.army.mil/DODIAA/default.asp>.

1.6.19.4. Information Assurance (IA)/Information Technology (IT) Training: All Contractor employees and subcontractor employees requiring access to Government information systems must complete the DoD IA awareness training before issuance of network access and annually thereafter. All employees working IA/IT functions must comply with DoD and Army training requirements in Per DoD 8570.01, DOD 8570.01-M, and AR 25-2, within 30 days of employment. Training is available at <https://ia.signal.army.mil/DoDIAA/default.asp>.

1.6.19.5. Threat Awareness Reporting Program (TARP Training): Within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies, or 30 calendar days after employment of new personnel, all Contractor employees, including subcontractor employees, who are employed under the contract and require a security clearance, shall complete TARP training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies. The Contractor shall submit certificates of completion for each affected Contractor employee and subcontractor employee to the COR within 10 calendar days after completion of training by all employees and subcontractor personnel. TARP training is available at the Army Learning Management System (ALMS) <https://www.lms.army.mil/>. Training must have been completed within the last 12 months and maintained yearly thereafter. If training cannot be conducted on the website, the Contractor will coordinate with the local Counter Intelligence (CI) Officer at their assigned location for classroom training and a copy of either the training certificate or the training attendance roster signed by the CI Officer will be maintained by the Contractor. Verification of the training will be provided to the Contracting Officer (KO) or Contracting Officer Representative (COR) within 10 calendar days after completion of the training.

1.6.19.6. iWATCH Training: The Contractor will ensure that all Contractor employees and sub-contractor employees performing services under this contract have been briefed on the iWATCH Program, or equivalent for their supporting DoD Agency, within 30 days of employment under the contract. The Contractor will coordinate with the supporting DoD Agency AT Officer through the COR or KO for the briefing. This training will be updated as required by the supporting installation AT policies. A copy of the training attendance will be maintained by the Contractor and made available to the COR or KO within 24 hours of the request.

1.6.19.7. OPSEC Training: All Contractor employees and sub-Contractor employees performing services under this contract will complete Level I OPSEC training within 30 calendar days of employment under this contract. OPSEC Level I training is available at <https://jkodirect.jten.mil>, course number "EUC-ECJ6-110-N-LB". Training must have been completed within the last 12 months and maintained yearly thereafter. If training cannot be conducted on the website, the Contractor will coordinate with the local OPSEC Officer at their assigned location for classroom training by a Level 2 trained OPSEC Officer and a copy of either the training certificate or the training attendance roster signed by the OPSEC Officer will be maintained by the Contractor. Verification of the training will be provided to the COR or KO within five (5) days of the request.

1.6.20. Overseas Training Requirements: Reserved.

1.6.20.1. Antiterrorism (AT) Awareness Training for Contractor Personnel Traveling: Reserved.

1.6.20.2. SERE Training: Reserved..

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1.6.21. Foreign (OCONUS) Requirements: Reserved.

1.6.21.1. Theater and Country Clearance Requirements: Reserved.

1.6.21.2. Vetting: Reserved.

1.6.21.3. Installation Access to DOD Facility or Host Nation Installation: Reserved.

1.6.21.4. Host Nation Installation Access with No DOD Facility: Reserved.

1.6.21.5. Deoxyribonucleic Acid (DNA) Samples: Reserved.

1.6.21.6. Medical Travel Requirement: Reserved.

1.6.22. Synchronized Pre-deployment and Operational Tracker (SPOT): Reserved.

1.6.22.1. Reserved.

1.6.23. Safety: The following provides information pertaining to Safety and Accident Prevention: RA shall consult with the responsible Safety Officer and Activity manager assigned to performance location(s).

1.6.23.1. **Safety Laws and Regulations**:

1.6.23.1.1. In addition to other requirements for accident prevention specified in this contract, the Contractor shall comply with all Federal and State requirements governing safety and health protection on construction sites and other applicable occupational safety codes.

The Contractor shall indicate its plan for compliance considering conditions of the work described by the design, technical proposal, operational activities of the Government or others in the area of the work, identification of the coordinator, and implementation of all other accident prevention provisions of this contract. *For the compliance with host nation laws and regulations, the Contractor shall comply with the non-exclusive list of duties described in this paragraph. If the Contractor determines that additional activities are required to fully comply, the Contractor shall ensure that compliance with the laws is complete. The duties include:*

(a) Conditions of construction and operational activities to be considered include but are not limited to:

(i) For all construction activities meeting the following criteria: the work is scheduled to last longer than 30 working days and more than 20 workers are occupied simultaneously, or the volume of work is scheduled to exceed 500 person days, or the work presents particular tasks, e.g. excavations deeper than 5 meters, falls from a height of greater than 7 meters, exposures to hazardous chemical or biological substances, work at less than 5 meters from high voltage lines, underground earth works or tunnels, danger of drowning, diving, use of compressed air, work with ionizing radiation, explosives, or work involving assembly or dismantling of heavy prefabricated components (10 tons or greater).

(b) If the Contractor determines that the BaustellV, dated 10 June 1998, applies, the Contractor shall prepare a Safety and Health Protection Plan (SIGE) as required under that regulation. The SIGE shall be submitted two weeks prior to mobilization. In addition, the Contractor shall appoint a qualified Safety Coordinator who will ensure that safety measures are implemented during construction. The Safety Coordinator must meet minimum training and experience requirements required under local laws.

(c) The SIGE will be written in a comprehensive form and explained in language the workers understand and shall contain the following minimum information:

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- (i) Maintenance of tools and equipment.*
- (ii) Provisions for the storage and disposal of materials and waste, particular hazardous materials and substances.*
- (iii) Modifying performance periods for such work, taking into consideration the site conditions.*
- (iv) Organizing cooperation between different employers and Contractors without employees.*
- (v) Interaction between work at the site and other operational activities in the area, on which or near which the first identified work will be performed, and taking into consideration the instructions and advice of the coordinator as well as safety and health plans.*

1.6.23.1.2. The Contractor shall complete and provide safety notifications required *within city limits of Del Rio, Texas* and will provide documented proof to the Contracting Officer via the COR, no later than number of five (5) days that such notifications were made.

1.6.24. Environmental Compliance: The following provides information on Environmental Compliance.

1.6.24.1. Environmental Compliance Plan and Program:

“The Contractor shall ensure that all of its operations and activities conform to the (insert unit and or organization here) environmental policy requirements. The Contractor shall ensure that all contract personnel have received appropriate levels of training in the handling, use, storage, and disposal of hazardous material. In addition, the Contractor shall ensure that all Contractor controlled activities are conducted in accordance with the local laws of Del Rio, Texas’ Spill Prevention and Response Plan, Solid Waste Policy, Final Governing Standards, and applicable environmental laws/standards.

“If contract requires the use of hazardous materials/substances, the Contractor shall, prior to mobilization, inform the Contracting Officer (KO)/Contracting Officer Representative (COR) of the types and amount of hazardous materials needed to be brought onto the area of in order to fulfill their contractual requirements. Contractor shall also provide the Safety Data Sheets, storage requirements and proposed storage locations for the hazardous material. The KO/COR shall provide a copy of this information to the Fire Department and the Environmental Division.

“Prior to contract completion, the Contractor shall remove all hazardous materials and dispose of all hazardous waste (HW) generated in accordance with Final Governing Standards of Del Rio, Texas environmental laws/standards. A copy of the HW disposal documents must be forwarded to the HW program manager.”

“The Contractor shall clean up at its own expense any contamination, including soil and ground water contamination caused by hazardous materials/substances brought onto the garrison, or by his activities. The Contractor must immediately report any hazardous substance spills to the local Fire Department.”

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Definitions & Acronyms

2. **DEFINITIONS AND ACRONYMS:**

2.1. Definitions:

2.1.1. Area of Responsibility: Del Rio, Texas

2.1.2. Contractor. The total contractor organization or a separate entity of it; such as an affiliate, division, or plant that performs its own purchasing.

2.1.3. Contracting officer (KO). A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

2.1.4. Contracting Officer's Representative (COR). An individual designated and authorized in writing by the contracting officer to perform specific technical or administrative functions.

2.1.5. Defective Service. A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.6. Deliverable. Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.7. Foreign National. A foreign national is not a U.S. citizen. Green card holders are also identified as foreign nationals. A foreign national is further categorized as either a third country national or a local national based on the person's citizenship and location of performance of duty.

2.1.8. Key Personnel. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.9. Local National. Local nationals are foreign nationals who are citizens of the country where the performance of duty will occur.

2.1.10. Performance Work Statement (PWS). A statement of work for performance-based acquisitions that describes the required results in clear, specific, and objective terms with measurable outcomes.

2.1.11. Physical Security. Protection of the perimeter area, government property, and assets that prevent the loss or damage of Government property.

2.1.12. Quality Assurance. The various functions, including inspection, performed by the government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

2.1.13. Quality Assurance Surveillance Plan (QASP). A plan describing how the agency will survey, observe, test, sample, evaluate and document the Contractor's performance in meeting critical performance standards identified in the contract.

2.1.14. Quality Control (QC). Tasks performed by the Contractor to improve the quality of the organization's output.

2.1.15. Shall. An imperative command; has a duty to or is required to. Denotes that a regulation must be followed unless the contracting officer has obtained a deviation.

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2.1.16. Subcontractor. Any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

2.1.17. Third Country National. Third country nationals are foreign nationals who are not citizens of the country where the performance of duty will occur.

2.1.18. Work Day. The number of hours per day the Contractor provides services in accordance with the contract.

2.1.19. Work Week. Saturday through Sunday, unless specified otherwise.

2.2. Acronyms:

AFFSSIR	Armed Forces Repository of Specimen Samples
ALMS	Army Learning Management System
ANSI	American National Standards Institute
AOR	Area of Responsibility
AR	Army Regulation
ATCTS	Army Training Certification Tracking System
AT	Anti-Terrorism
CAC	Common Access Card
CFR	Code of Federal Regulations
CI	Counter Intelligence
CLIN	Contract Line Item Number
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
DD Form 254	Department of Defense Contract Security Requirement List
DNA	Deoxyribonucleic Acid (DNA)
DOD	Department of Defense
DODD	Department of Defense Directive
DODI	Department of Defense Instruction
FAR	Federal Acquisition Regulation
FHP	Force Health Protection
FCG	Foreign Clearance Guide
FN	Foreign National
FY	Fiscal Year
GFE	Government Furnished Equipment
GFP	Government Furnished Property
GFS	Government Furnished Services
IA	Information Assurance
IAW	In Accordance With
IT	Information Technology
JPAS	Joint Personnel Adjudication System
JTR	Joint Travel Regulation
KO	Contracting Officer
LN	Local National
LOA	Letter of Authorization
NCIC-III	National Crime Information Center Interstate Identification Index
NIST	National Institute of Standards and Technology
ODC	Other Direct Costs
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OSHA	Occupational Safety and Health Administration
OPSEC	Operation Security
PIPO	Phase In/Phase Out

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PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan
QCP	Quality Control Program
RA	Requiring Activity
SCR	Service Contract Reporting
SOP	Standard Operating Procedures
SPOT	Synchronized Predeployment and Operational Tracker
TCN	Third Country National
TE	Technical Exhibit
TSDB	Terrorist Screening Data Base
U.S.C.	United States Code
USSOUTHCOM	United States Southern Command

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Part 3

Government Furnished Equipment (GFE), Government Furnished Property (GFP), and Government
Furnished Services (GFS)

3. **GOVERNMENT FURNISHED ITEMS AND SERVICES:**

- 3.1. Services: The Government will not provide any services.
- 3.2. Facilities: The Government will not provide facilities.
- 3.3. Utilities: Reserved
- 3.4. Equipment: Reserved.
- 3.4.1. Reserved.
- 3.5. Materials: The Government will not provide any materials.
- 3.6. Common Access Cards (CAC): N/A.

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Contractor Furnished Items and Services

4. **CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:**

4.1. **General:** The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Part 3 of this PWS.

4.2. **Facility Security Clearance:** Reserved.

4.3. **Materials:** The Contractor shall provide the equipment type and size suitable for the required operation. The contractor shall affix a highly visible, permanent contractor's nameplate on all contractor-owned equipment. The contractor shall ensure that if commingling of U.S. Government and contractor-furnished equipment occurs, each set of equipment is easily identifiable and can be separated for inspection and inventory as required. The contractor shall maintain a sufficient quantity of on-hand materials and supplies to perform all work required under this Contract. Failure on the part of the contractor to provide sufficient quantities and quality of supplies and materials within the specifications of the Contract shall not be cause for reduction in any service or performance. The contractor shall maintain stocks to ensure continuous operation of critical systems as approved by the KO. Critical systems are those that are directly related to health care, safety, and mission accomplishment. The contractor shall provide a system for rapid procurement of items whose usage levels do not require maintenance of on-hand stocks. This system shall include a list of vendors for each such mission-critical repair item, information on availability, and expected delivery times.

4.4. **Equipment:** The Contractor shall provide all necessary vehicles (no GSA vehicles provided to Contractor for use on this contract) and equipment to perform the work described in this PWS. All Contractor provided vehicles and equipment shall have the company name prominently displayed on both sides of the vehicle or equipment and present a neat, professional appearance. Contractor's vehicles and equipment used in the performance of this contract shall meet all local traffic, safety, and environmental requirements. Vehicles and equipment found to be unsafe shall be removed from service and replaced. The Contractor shall not use any Government-owned tools, materials, or parts to maintain Contractor vehicles and equipment without prior written approval of the Contracting Officer. The COR may inspect the Contractor's vehicles and equipment at any time.

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Part 5
Specific Tasks

5. Specific Tasks: The Contractor shall provide non-personal services to supply, place, service, and maintain portable latrines and portable handwashing stations in accordance with this PWS. The Contractor shall provide fourteen (14) portable latrines and seven (7) handwashing stations to the Del Rio, Texas Sector and ensure all units are fully operational, clean, and maintained. All units shall be serviced on a twice-weekly schedule. Servicing includes, but is not limited to, cleaning, waste removal, grey water removal, replenishment of water, restocking of two (2) rolls of toilet paper per latrine, one (1) roll of paper towels per handwashing station, and refilling soap dispensers.

The Contractor shall perform routine scheduled maintenance on all units to ensure serviceability. Required repairs shall be completed during scheduled servicing, or the unit shall be replaced with a serviceable unit within twenty-four (24) hours. Any unit that has tipped over, whether anchored or not, shall be reset and re-serviced within twenty-four (24) hours of notification by the KO or COR. For all non-routine maintenance, the Contractor shall provide the COR with a service performance ticket indicating the service performed, signed by both the Contractor and the Government on the date of service.

The Contractor shall ensure all units can be relocated within five (5) business days upon Government request. The Contractor is responsible for all spills and associated cleanup, shall exercise due diligence to prevent spills, and shall report all spills—regardless of size—to the applicable Environmental Division. Cleanup shall be performed in accordance with Federal, State, and local laws and Environmental Division guidance, at no cost to the Government. The Contractor shall ensure all employees are knowledgeable in spill-prevention procedures and capable of following required spill plans. The Contractor is responsible for dumping all grey water at their own expense in accordance with State laws and shall obtain all necessary licenses and permits required for performance, without additional cost to the Government.

The Government reserves the right to request additional cleaning services beyond the scheduled twice-weekly servicing. Upon notification, the Contractor shall perform additional cleaning of one or all units within forty-eight (48) hours.

Tasks consist of the following:

5.1. Basic Services. The Contractor shall provide all labor, supervision, equipment, vehicles, tools, materials, and supplies necessary to deliver, emplace, service, relocate, maintain, and remove portable latrines and handwashing stations in accordance with this PWS. All services shall be performed in a manner that ensures sanitation, health, safety, and uninterrupted support to mission operations.

5.2. Portable Latrines.

5.2.1. Contractor shall provide fourteen (14) portable latrines. Two (2) portable latrines shall be placed at each of the seven (7) locations identified in Attachment A.

- (a) **Standard (STD):** Contractor shall deliver and emplace all fourteen (14) portable latrines at the designated locations by the date specified by the Government.
Acceptable Quality Level (AQL): Pass or Fail

5.2.1.1. Each portable latrine shall be in serviceable condition and designed for single-occupancy use. Units shall be fully enclosed with a roof, watertight, structurally sound, well-ventilated, and free of leaks, cracks, holes, or other damage. All interior surfaces, including the toilet seat, walls, door, and floor, shall be damp-cleaned, sanitized, and free of human waste, soiled toilet articles, dirt, and debris. The roof, sides, and floors shall be clean and ready for immediate occupant use.

- (a) **STD:** The Contractor shall ensure each portable latrine meets all enclosure, single-occupancy, watertightness, ventilation, cleanliness, and structural integrity requirements at all times.
AQL: No more than five (5) deficiencies per month.

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5.2.1.2. Each unit shall have a spring-loaded closing mechanism to close when released. The door shall have sufficient tension placed on it to prevent wind from blowing it open when the unit is unoccupied. Each door shall have a workable inside lock.

- (a) STD: The Contractor shall ensure each portable latrine door is equipped with a functional spring-loaded closing mechanism, maintains adequate tension to prevent wind-induced opening, and includes a fully operational inside lock.
AQL: No more than five (5) deficiencies per month.

5.2.1.3. Each latrine shall have a toilet seat, urinal, and toilet paper holder(s); all hinges and other pertinent parts shall be undamaged and usable.

- (a) STD: The Contractor shall ensure each portable latrine is equipped with a functional toilet seat, urinal, and toilet paper holder(s), and that all hinges and other components are intact, undamaged, and fully operational.
AQL: No more than five (5) deficiencies per month.

5.2.1.4. All portable latrines shall be serviced twice per week.

- (a) STD: Contractors shall service portable latrines twice per week.
AQL: No more than two (2) missed or late services per month.

5.2.1.5. Servicing shall include pumping and removal of waste, replenishment of toilet paper and deodorizing chemicals, interior and exterior cleaning, inspection for damage, and correction of deficiencies. Portable latrines that are damaged, inoperable, or unsanitary shall be repaired or replaced within 24 hours.

- (a) STD: Contractor shall repair or replace any damaged, inoperable, or unsanitary unit within 24 hours upon discovery or notification.
AQL: Pass or Fail.

5.2.1.6. Contractor shall post service sheets in a visible location on each unit at every service. The contractor shall complete and post a Service Sheet, defined as a document contractor-provided format that records all services provided, deficiencies identified, and corrective actions taken for each service event. The contractor may use their own Service Sheet format, provided it includes all required information and is approved by the Government.

- (a) STD: Contractor shall post service sheets in a visible location on each unit at every service.
AQL: No more than three (3) deficiencies per month.

5.2.1.7. Portable latrines shall be fully emptied of all waste materials and refilled with standard commercial sanitizing chemicals during each service.

- (a) STD: The Contractor shall ensure each latrine is completely emptied of waste and refilled with the appropriate commercial sanitizing chemicals during every service cycle.
AQL: No more than five (5) deficiencies per month.

5.3.1.8. All units shall be disinfected with a germicidal detergent each time the unit is serviced, and all detergent residues shall be removed prior to the Contractor departing the site.

- (a) STD: The Contractor shall ensure each unit is fully disinfected with germicidal detergent during every service and that all detergent residues are completely removed before leaving the unit.
AQL: No more than five (5) deficiencies per month.

5.2.1.9. All waste shall be disposed of in accordance with applicable federal, state, and local laws. The Government shall not provide containers or transportation for waste disposal.

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- (a) STD: Contractor shall dispose of all waste in full compliance with federal, state, and local regulations.
AQL: Pass or Fail

5.2.1.10. Portable latrine Portable latrines shall be enclosed on all four sides, include a roof, and be large enough for a single standing occupant. Latrines shall be capable of withstanding winds up to 70 mph and shall be maintained in good repair. Collapsible latrines are not acceptable.

- (a) STD: Contractor shall ensure all portable latrines meet enclosure, size, structural, and wind-resistance requirements.
AQL: No more than five (5) deficiencies per month.

5.2.1.11. Each portable latrine shall include a minimum 60-gallon waste holding tank, a seated toilet, lockable door, ventilation, and odor-control chemical treatment.

- (a) STD: Contractor shall ensure each portable latrine contains all required components and treatments.
AQL: No more than five (5) deficiencies per month.

5.2.1.12. Portable latrines shall be free of holes, leaks, or structural damage. Doors, hinges, and latches shall function as designed by the manufacturer.

- (a) STD: Portable latrines shall be free of holes, leaks, or structural damage. Doors, hinges, and latches shall function as designed by the manufacturer.
AQL: No more than five (5) deficiencies per month.

5.2.1.13. Each portable latrine shall include wall-mounted toilet paper holder (minimum two rolls), coat hook and urinal securely fastened to the unit.

- (a) STD: Contractor shall ensure each portable latrine contains all required fixtures and accessories.
AQL: No more than five (5) deficiencies per month.

5.2.1.14. Urinals shall drain properly into the holding tank and shall not overflow.

- (a) STD: The Contractor shall ensure all urinals drain properly into the holding tank and remain free of overflow at all times.
AQL: No more than five (5) deficiencies per month.

5.2.1.15. The Contractor shall leave the area in and around the latrine(s) in a sanitary condition. A sanitary condition is defined as the immediate ten (10)-foot area surrounding each unit being free of litter, debris, and waste, with no evidence of spills or leakage from the unit during servicing, filling, or emptying.

- (a) STD: The Contractor shall ensure the ten (10)-foot area surrounding each unit is litter-free and free of any waste spills or leakage after each servicing.
AQL: No more than five (5) deficiencies per month.

5.2.1.16. Each unit shall have combination or key locks to prevent anyone other than government personnel from using them.

- (a) STD: The Contractor shall ensure each unit meets the above criteria.
AQL: No more than five (5) deficiencies per month.

5.3. Handwashing Stations.

5.3.1 The Contractor shall provide seven (7) hand washing stations as required. Handwashing stations shall be stocked with potable water, soap, and hand-drying materials.

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- (a) STD: The Contractor shall ensure all seven handwashing stations are provided as required and fully stocked with potable water, soap, and hand-drying materials at all times.
AQL: No more than five (5) deficiencies per month.

5.3.1.2. Each handwashing station shall be in serviceable condition. Units shall be structurally sound, free of leaks, cracks, holes, or other damage. All surfaces shall be damp-cleaned, sanitized, and free of human waste, dirt, and debris.

- (a) STD: The Contractor shall ensure each handwashing station is structurally sound, free of damage, and fully cleaned and sanitized during each service cycle.
AQL: No more than five (5) deficiencies per month.

5.3.1.3. Units shall have (a) soap dispenser(s) and paper towel dispenser(s) to support the unit.

- (a) STD: The Contractor shall ensure each unit is equipped with functional soap and paper towel dispensers.
AQL: No more than five (5) deficiencies per month.

5.3.1.4. Units shall have separate fresh-water and gray-water tanks, each equipped with secure, sealable lids.

- (a) STD: The Contractor shall ensure each unit is equipped with properly functioning fresh-water and gray-water tanks, and that all tank lids are secure and fully sealable.
AQL: No more than five (5) deficiencies per month.

5.3.1.5. Handwashing stations shall be serviced twice per week.

- (a) STD: The Contractor shall service each handwashing station twice per week, ensuring full replenishment, cleaning, sanitizing, and inspection, and shall immediately repair or replace any inoperable or unsanitary unit.
AQL: No more than five (5) missed or late services per month.

5.3.1.6. Servicing shall include replenishment of potable water, soap, and hand-drying materials; cleaning and sanitizing of the unit; and inspection for leaks, damage, or malfunction. Inoperable or unsanitary stations shall be repaired or replaced immediately. Supplies include, but are not limited to, hand-drying towels, soap, and potable water.

- (a) STD: Contractor shall repair or replace any damaged, inoperable, or unsanitary unit immediately upon discovery or notification.
AQL: Pass or Fail.
- (b) STD: Contractor shall post service sheets in a visible location on each unit at every service.
AQL: No more than three (3) deficiencies per month.

5.3.1.7. Contractor shall post service sheets in a visible location on each unit at every service. The contractor shall complete and post a Service Sheet, defined as a document contractor-provided format that records all services provided, deficiencies identified, and corrective actions taken for each service event. The contractor may use their own Service Sheet format, provided it includes all required information and is approved by the Government.

- (a) STD: Contractor shall post service sheets in a visible location on each unit at every service.
- (b) AQL: No more than three (3) deficiencies per month.

5.3.1.8. All units shall be disinfected with a germicidal detergent each time the unit is serviced, and all detergent residues shall be removed prior to the Contractor departing the site.

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- (a) STD: The Contractor shall ensure each unit is fully disinfected with germicidal detergent during every service and that all detergent residues are completely removed before leaving the unit.
AQL: No more than five (5) deficiencies per month.

5.3.1.9. Handwashing stations shall be emptied of all gray water, and all fresh-water tanks shall be refilled during each service. Soap and paper towel supplies shall be fully replenished.

- (a) STD: The Contractor shall ensure each handwashing station is serviced by emptying gray-water tanks, refilling fresh-water tanks, and fully replenishing soap and paper towel supplies during each service cycle.
AQL: No more than five (5) deficiencies per month.

5.3.1.10. All waste shall be disposed of in accordance with applicable federal, state, and local laws. The Government shall not provide containers or transportation for waste disposal.

- (a) STD: Contractor shall dispose of all waste in full compliance with federal, state, and local regulations.
AQL: Pass or Fail

5.4. General Equipment Requirements.

5.4.1 All equipment shall be delivered to the specified locations no later than 1200 CST on the first day of the Period of Performance (PoP). Delivery shall be coordinated with the COR to confirm delivery times and locations. The Contractor shall allow sufficient time for a joint visual inspection. All setup shall be completed, and equipment shall be fully operational at the time of delivery. Delivery and pick-up costs are included in the contract price.

- (a) STD: The Contractor shall deliver, set up, and make all equipment fully operational by 1200 CST on the first day of the PoP, with coordination and inspection as required.
AQL: No more than one (1) late or non-compliant delivery per PoP.

5.4.2. The Contractor shall relocate units within forty-eight (48) hours of notification by the COR. The Contractor shall provide up to two (2) relocations per unit per month at no additional cost to the Government.

- (a) STD: The Contractor shall relocate units within 48 hours of COR notification and provide up to two relocations per unit per month at no additional cost.
AQL: No more than two (2) late relocations per month.

5.4.3. The Contractor shall correct all deficiencies within twenty-four (24) hours of notification from the KO or COR.

- (a) STD: The Contractor shall correct all identified deficiencies within 24 hours of notification from the KO or COR.
AQL: Pass or Fail.

5.4.4. The Contractor shall be available by phone to provide 24-hour emergency repair and/or replacement services for leased equipment, including weekends and holidays, at the Contractor's expense. Upon notification from the KO or COR, the Contractor shall complete repairs within twenty-four (24) hours or replace the equipment within forty-eight (48) hours. All repairs, replacements, deliveries, and pick-ups not resulting from Government negligence shall be provided at no additional cost to the Government. Repairs shall be performed on-site at the equipment location. All replacement or backup units used due to primary unit failure shall be provided at no additional cost to the Government.

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- (a) STD: The Contractor shall provide 24-hour emergency response capability and complete repairs or replacements within the required timeframes at no additional cost to the Government.
AQL: Pass or Fail.

5.4.5. The Contractor shall transport all chemicals in accordance with the Hazardous Materials Regulations (HMR), Title 49 of the Code of Federal Regulations (CFR). Chemicals shall not be stored in the passenger compartment of any vehicle.

- (a) STD: The Contractor shall ensure all chemical handling and transport fully comply with 49 CFR HMR requirements and that no chemicals are stored in vehicle passenger compartments.
AQL: No more than five (5) deficiencies per month.

5.4.6. Each unit shall have a clearly readable Unique Identification Number (UID), visible on the exterior of the unit for identification.

- (a) STD: The Contractor shall ensure each unit has a clearly readable and properly affixed UID that is visible on the exterior at all times.
AQL: No more than five (5) deficiencies per month.

5.5 **Service Contract Reporting (SCR)**: The contractor shall report all contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for the USSOUTHCOM via a secure data collection site

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 30 of each calendar year using <http://sam.gov>.

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Part 6

Applicable Publications

6. **APPLICABLE PUBLICATIONS (CURRENT EDITIONS)** The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures.

6.1.1. DOD Commercial Use of Imagery Guidelines

6.1.2. AR 190-13, The Army Physical Security Program

6.1.3. Army Directive 2014-05, Policy and Implementation Procedures for CAC Credentialing Access for Uncleared Contractors

6.1.4. DOD 5220.22-M, National Industrial Security Program Operating Manual

6.1.5. Defense Federal Acquisition Regulation Supplement (DFARS)

6.1.6. Joint Travel Regulation (JTR)

6.1.7. AR 735-5, Policies and Procedures for Property Accountability

6.1.8. DODD 8570.01, Information Assurance Training Certification and Workforce Management

6.1.9. DOD 8570.01-M, Information Assurance Workforce Improvement Program

6.1.10. AR 25-2, Information Assurance

6.1.11. DODI 3020.41, Contractor Personnel Authorized to Accompany the U.S. Armed Forces

6.1.12. USSOUTHCOM SC Regulation 40-501, Medical Suitability Screening Regulation

6.1.13. DODI 2000.16 DoD Antiterrorism (AT) Program

6.1.14. Department of Defense Security Agreement (DD Form 441)

6.1.15. Contractor Identification (AE Reg 27-715)

6.1.16. Department of Defense Security Agreement (DD Form 441)

6.1.17. U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)

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Attachment and Technical Exhibit Listing

7. **Attachment/Technical Exhibit List:**

7.1. Technical Exhibits:

7.1.1. Technical Exhibit 1 – Performance Requirements Summary

7.1.2. Technical Exhibit 2 – Deliverables Schedule

7.2. Attachments:

7.2.1. Attachment A – Portable Latrines & Handwashing Station Locations

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Technical Exhibit 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The standard should relate to timeliness, quality, or quantity (metrics) of service required by the Contractor is stated in the PWS verbiage. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. **These thresholds are critical to mission success.**

Performance Objective	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”) Acceptable Quality Levels (AQL's)	Method of Surveillance
PRS #1 - PWS para 5.2.1.4, 5.3.1.4The Contractor shall service all portable latrines and handwashing stations.	All units shall be serviced twice per week. Servicing includes cleaning, waste/grey water removal, replenishment of water, restocking of supplies (toilet paper, paper towels, soap), and refilling deodorizing chemicals.	No more than two (2) missed or late services per month for the combined total of all units.	Random Sampling & Periodic Inspection
PRS #2 - PWS para 5.2.1.5, 5.3.1.5, 5.4.4The Contractor shall repair or replace damaged, inoperable, or unsanitary units.	Upon discovery or notification, the Contractor shall complete on-site repairs within twenty-four (24) hours or replace the equipment within forty-eight (48) hours.	Zero deviation from standard. This is a pass/fail item.	100% Inspection & Validated Customer Complaint
PRS #3 - PWS para 5.4.2The Contractor shall relocate units upon Government request.	The Contractor shall relocate units within forty-eight (48) hours of notification by the COR.	No more than two (2) late relocations per month.	100% Inspection
PRS #4 - PWS para 1.6.1.1The Contractor shall develop and submit a Quality Control Plan (QCP).	The QCP shall be submitted within thirty (30) days of contract award.	The QCP is submitted on time and is accepted by the Contracting Officer. Zero deviation from standard.	100% Inspection
PRS #5 - Service Contract ReportingPWS para. 5.5	The Contractor shall report all contractor labor hours required for performance via a secure data collection site (http://sam.gov). All data for the Government fiscal year (Oct 1 - Sep 30) shall be reported no later than October 30 of each calendar year.	100% Compliance.	100% Inspection

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<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
[PWS para. 1.6.1.1] Develop QCP	Within 30 days of contract award	1 original and 2 copies, within 30 days of contract award	Excel Spreadsheet	Contracting Officer and COR.
[PWS para. 1.6.2] Develop OPSEC SOP	Within 90 calendar days of contract award	1 original and 2 copies, within 90 calendar days of contract award	Word or PDF	Contracting Officer and COR.
[PWS para. 1.6.7.5] Background check completed	Within 10 days of request	1 original and 2 copies, within 10 days of request	Word or PDF	Contracting Officer and COR.
[PWS para. 1.6.7.5.1] Background check notification	Within 24 hours	1 original and 2 copies, within 24 hours of incident	Word or PDF	Contracting Officer and COR.
[PWS para. 1.6.7.7] Verification of eligibility through DoH website: http://www.uscis.gov/e-verify	Within 5 days of request	1 original and 2 copies, within 5 days of request	Word or PDF	Contracting Officer and COR.
[PWS para. 1.6.10] Contract manager designation in writing	Within 3 days of contract award	1 original and 2 copies, within 3 days of contract award	Excel Spreadsheet	Contracting Officer and COR.
[PWS para. 1.6.19.1] Submit AT Level I training certificate	Within 10 days after completion of training	1 original and 2 copies, within 10 days after completion of training	PDF	Contracting Officer and COR.
[PWS para. 1.6.19.1(2)] Verification of AT Level I training	Within 10 calendar days after after completion of training	1 original and 2 copies, within 10 calendar days after completion of training	PDF	Contracting Officer and COR.
[PWS para. 1.6.19.5] Submit TARP training certificate	Within 10 calendar days after after completion of training	1 original and 2 copies, within 10 calendar days after completion of training	PDF	Contracting Officer and COR.
[PWS para. 1.6.19.5 (2)] Verification of TARP training certificate	Within 10 calendar days after after completion of training	1 original and 2 copies, within 10 calendar days after completion of training	PDF	Contracting Officer and COR.
[PWS para. 1.6.19.6] A copy of the training attendance will be maintained with the contractor..	Within 24 hours of the request	1 original and 2 copies, within 24 hours of the request	PDF	Contracting Officer or COR.

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<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
[PWS para. 1.6.19.7] Submit OPSEC training certificate	Within 30 calendar days after after completion of training	1 original and 2 copies, within 30 calendar days after completion of training	PDF	Contracting Officer or COR.
[PWS para. 1.6.19.7 (2)] Verification OPSEC training certificate	Within 5 days of the request	1 original and 2 copies, within 5 days after completion of training	PDF	Contracting Officer or COR.

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Attachment A

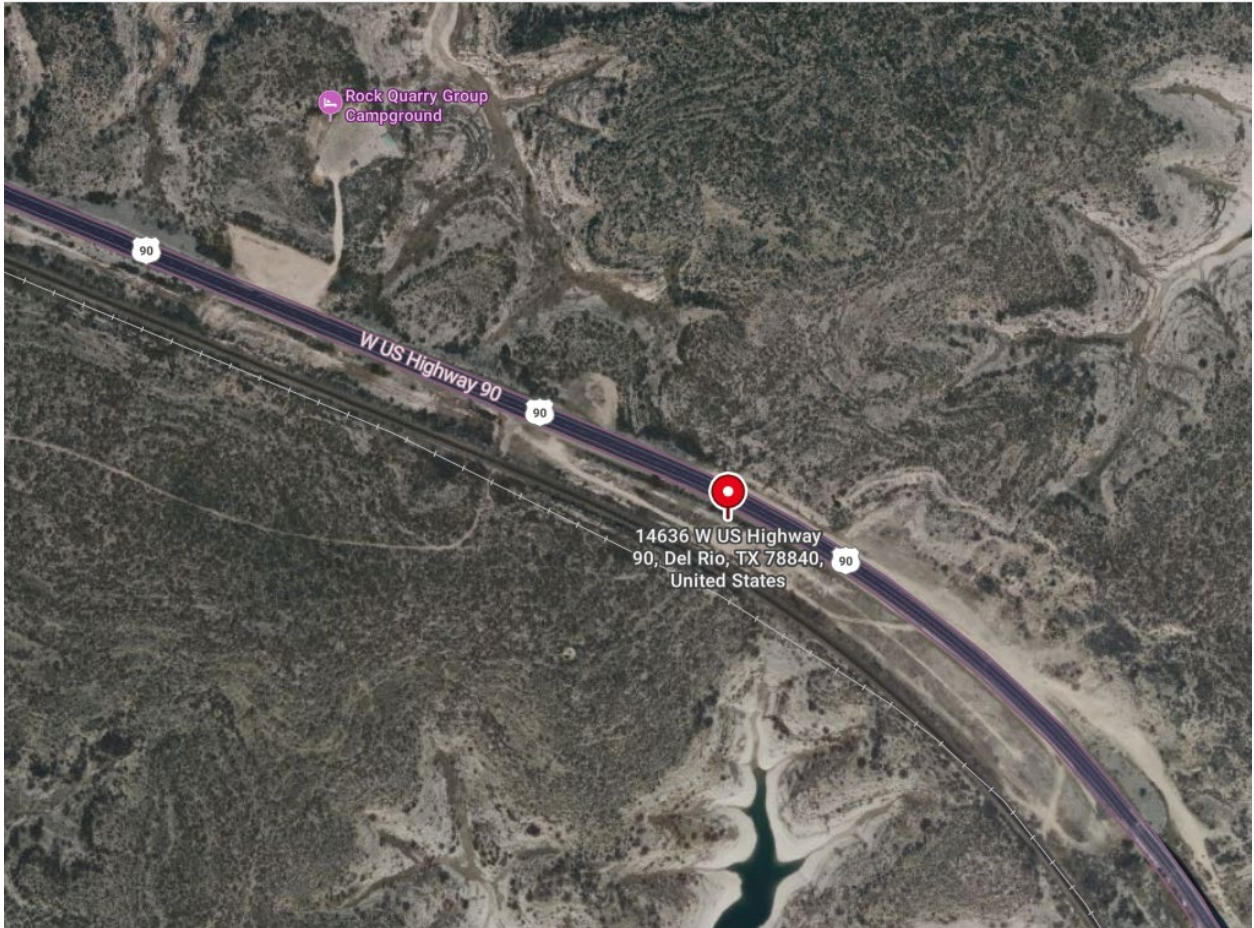
Portale Latrines & Handwashing Station Locations

1) 29.49397, -101.04072

29.49397, -101.04072



Directions



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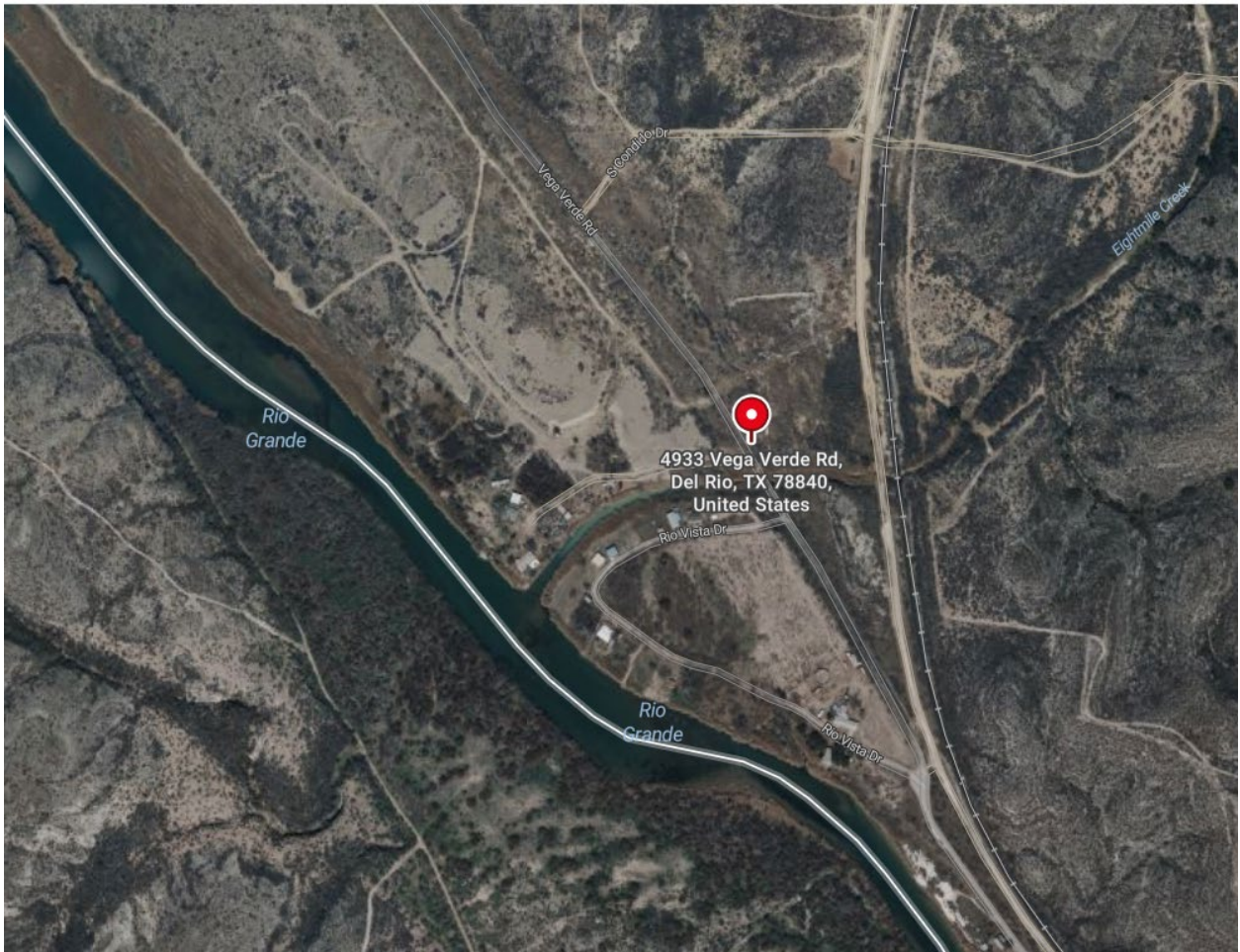
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2) 29.39677, -101.02194

29.39677, -101.02194



Directions



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3) 29.34868, -100.96454

29.34868, -100.96454



Directions



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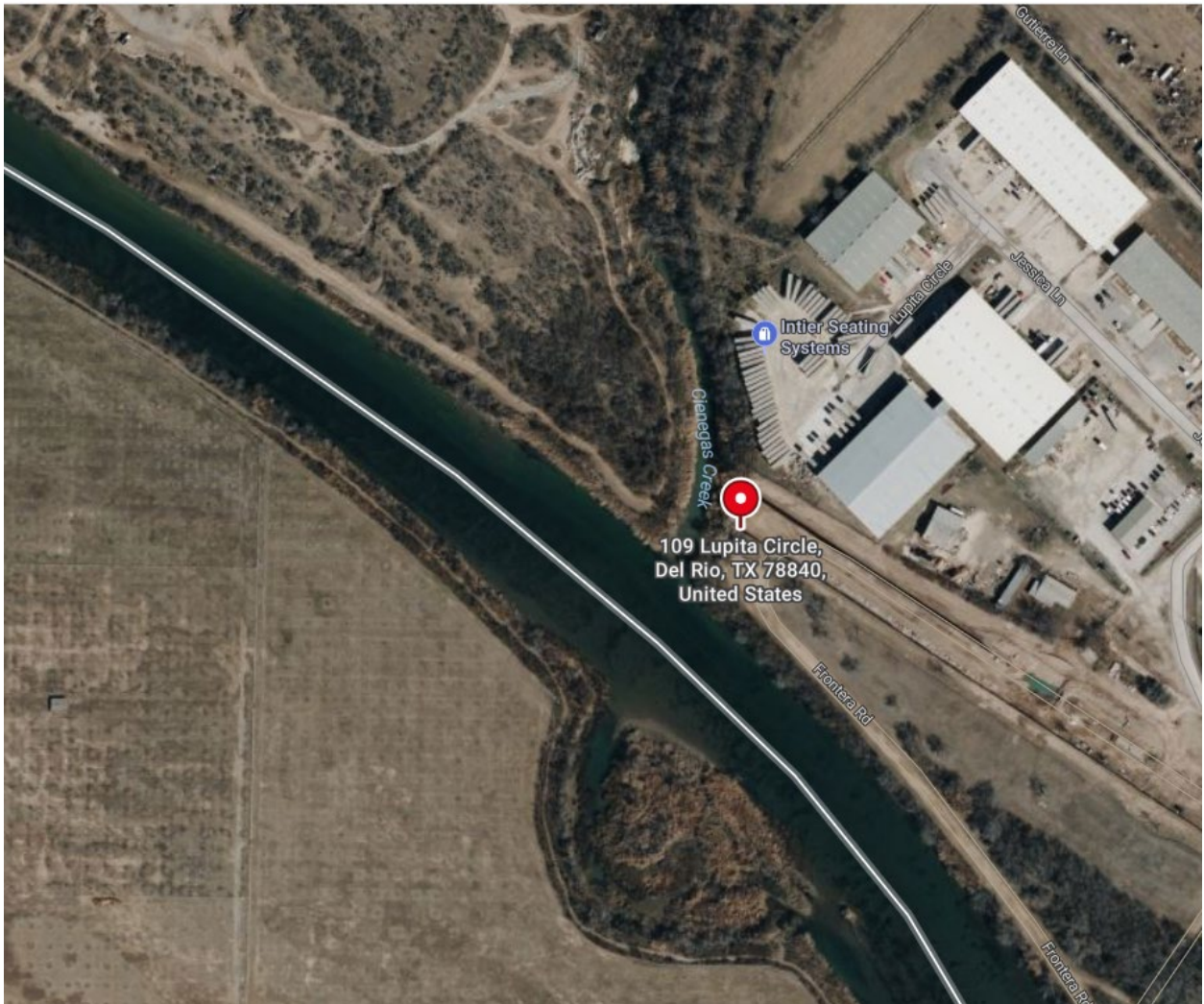
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4) 29.345697, -100.94525

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Directions



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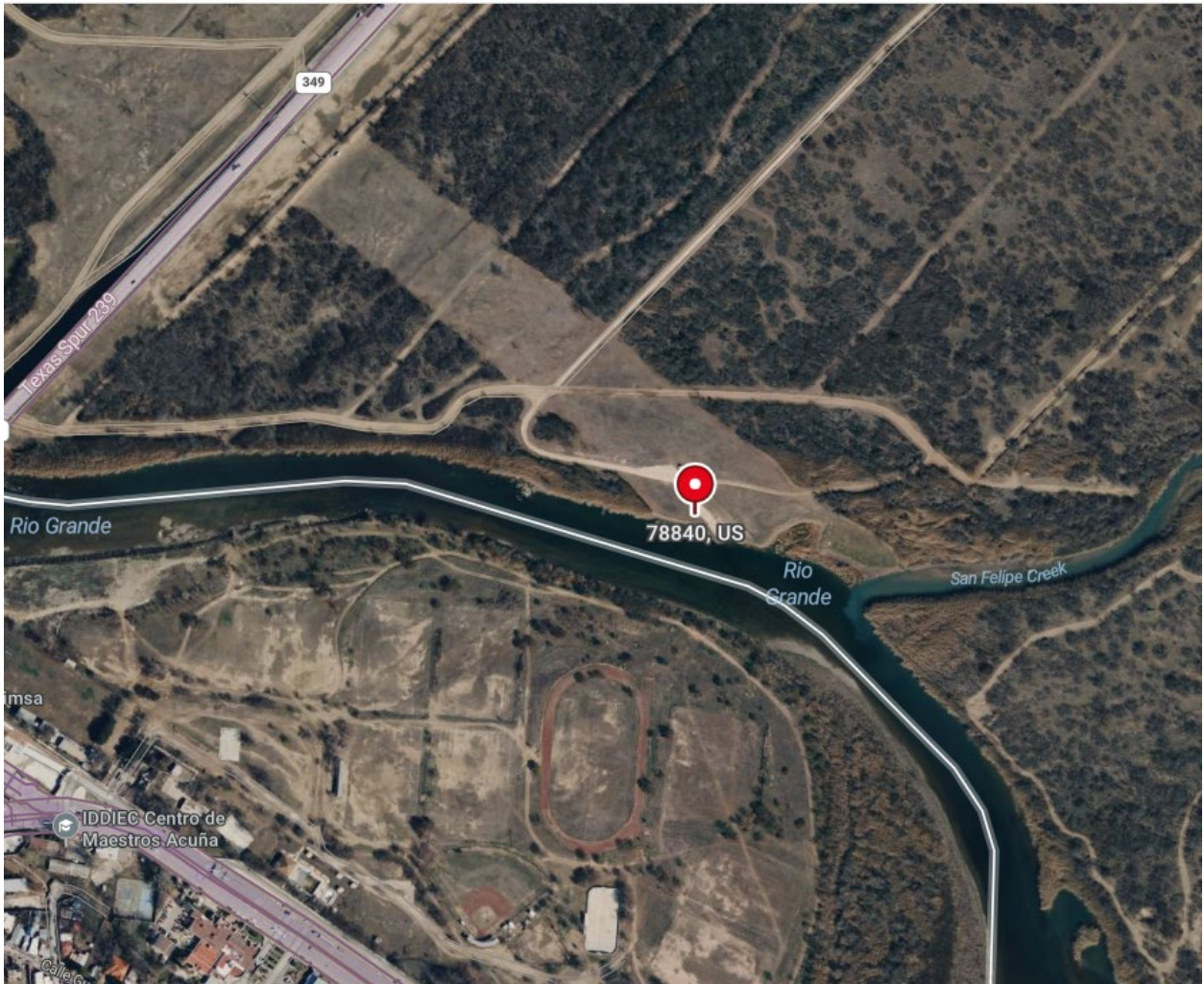
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5) 29.32656, -100.92034

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Directions



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6) 29.31804, -100.91249

29.31804, -100.91249



Directions



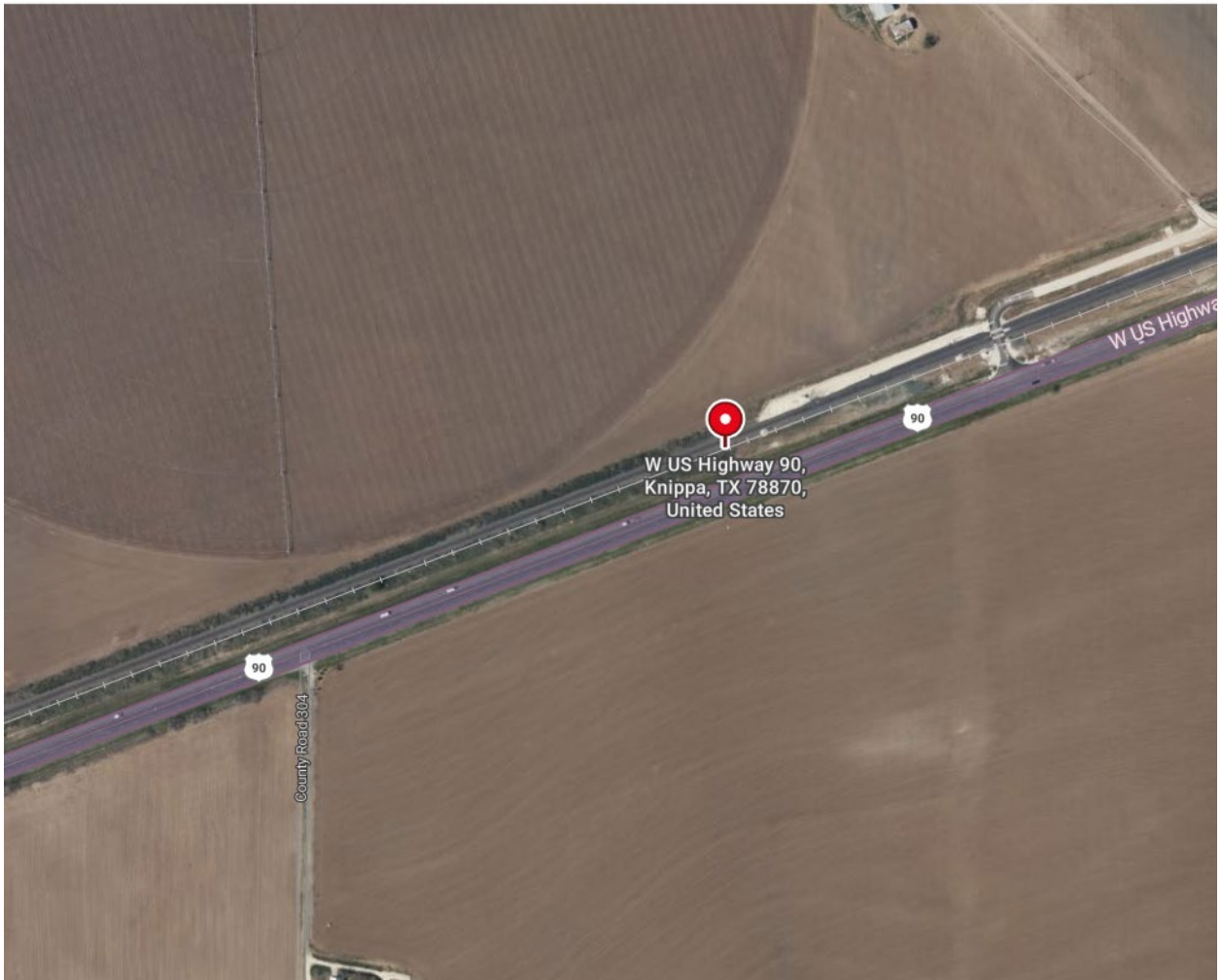
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7) 29.30646, -99.60211

29.30646, -99.60211



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ADDENDUM 1 – OCI LANGUAGE

1.6.17. Organizational Conflict of Interest (OCI).

(a) Work under this contract may create a future organizational conflict of interest (OCI) in the way of unequal access to information that could prohibit the Contractor from competing for, or being awarded future Government contracts. It is not the intention of the 410TH CSB to foreclose a vendor from a competitive acquisition due to a perceived OCI. 410th CSB Contracting Officers are fully empowered to evaluate each potential OCI scenario based upon the applicable facts and circumstances. The final determination of such action may be negotiated between the impaired vendor and the Contracting Officer. The Contracting Officer's business judgment and sound discretion in identifying, negotiating, and eliminating OCI scenarios should not adversely affect the [insert RCO/location here]'s policy for competition. The 410th CSB is committed to working with potential vendors to eliminate or mitigate actual and perceived OCI situations, without detriment to the integrity of the competitive process, the mission of the 410th CSB, the Army, or the legitimate business interests of the vendor community.

(b) Mitigation plans. The Contractor shall review its OCI mitigation procedures to avoid any potential OCI created by performance under this contract. The Contractor shall submit the reviewed OCI mitigation plan to the Contracting Officer no later than thirty (30) days after award. The 410th reserves the right to reject a mitigation plan, if in the opinion of the Contracting Officer, such a plan is not in the best interests of the 410th CSB or the Army. Additionally, after award, the 410th CSB will review OCI mitigation plans, as needed, in the event of changes in the vendor community due to mergers, consolidations, or any unanticipated circumstances that may create an unacceptable organizational conflict of interest.

(c) Potential Organizational Conflict of Interest. The following provides examples of situations where mitigation plans may or may not be required by the 410th CSB. These examples are not intended to be all inclusive.

(1) Unequal access to information. Access to "nonpublic information" as part of the performance of an Army contract could provide the Contractor a competitive advantage in a later competition for another Army contract. Such an advantage could easily be perceived as unfair by a competing vendor who is not given similar access to the relevant information. If the requirements of the Army procurement anticipate the successful vendor may have access to nonpublic information, the successful vendor should be required to submit and negotiate an acceptable mitigation plan. Alternatively, the "nonpublic information" may be provided to all vendors.

(2) Biased ground rules. A Contractor in the course of performance of an Army contract has in some fashion established important "ground rules" for another Army contract, where the same Contractor may be a competitor. For example, a Contractor may have drafted the statement of work, specifications, or evaluation criteria of a future Army procurement. The primary concern of the Army in this case is that a Contractor so situated could slant key aspects of procurement in its own favor, to the unfair disadvantage of competing vendors. If the requirements of the Army procurement anticipate the Contractor may have been in a position to establish important ground rules, including but not limited to those described herein, the Contractor should be required to submit and negotiate an acceptable mitigation plan.

(3) Impaired objectivity. A Contractor in the course of performance of an Army contract is placed in a situation of providing assessment and evaluation findings over itself, or another business division, or subsidiary of the same corporation, or other entity with which it has a significant financial relationship. The concern in this case is that the Contractor's ability to render impartial advice to the Army could appear to be undermined by the Contractor's financial or other business relationship to the entity whose work product is being assessed or evaluated. In these situations, a "walling off" of lines of communication may well be insufficient to remove the perception that the objectivity of the Contractor has been tainted. If the requirements of the Army procurement indicate that the Contractor may be in a position to provide evaluations and assessments of itself or corporate siblings, or other entity with which it has a significant financial relationship, the affected Contractor should provide a mitigation plan that includes recusal by the

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vendor from the affected contract work. Such recusal might include divestiture of the work to a third party vendor.

(d) The Contractor shall provide information which concisely describes all relevant facts concerning any past, present, or currently planned interest (financial, contractual, organizational, or otherwise), relating to the work to be performed and bearing on whether the offeror or Contractor has a possible OCI.

(e) If the Contractor does not disclose any relevant facts concerning an OCI, the Contractor, by signing the contract, warrants that to its best knowledge and belief no such facts exist relevant to possible OCI.

(f) Remedies for nondisclosure. The following are possible remedies should a Contractor refuse to disclose, or misrepresent, any information regarding a potential OCI:

(1) Refusal to provide adequate information may result in disqualification for award.

(2) Termination of the contract, if the nondisclosure or misrepresentation is discovered after award.

(3) Disqualification from subsequent 410th CSB contracts.

(4) Other remedial action as may be permitted or provided by law or in the resulting contract.